

The Indian Soldiers (Litigation) Act, 1925

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Union of India - Act

The Indian Soldiers (Litigation) Act, 1925

UNION OF INDIA

India

The Indian Soldiers (Litigation) Act, 1925

Act 4 of 1952

Published on 1 January 1952

Commenced on 1 January 1952

[This is the version of this document from 1 January 1952.]

[Note: The original publication document is not available and this content could not be verified.]

The Indian Soldiers (Litigation) Act, 1925

4.

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Statement of Objects and Reasons.-In May 1915 an Ordinance was made and promulgated for the special protection in respect of civil and revenue litigation of Indian soldiers serving under war conditions. The Ordinance was replaced in the first instance by an Act passed in 1915, and the provisions of that Act were re-enacted, with certain amendments, in the Indian Soldiers (Litigation) Act, 1918. The Act applies to Indian soldiers serving under war conditions and provides inter alia for the postponement in certain circumstances of civil and revenue proceedings in which an unrepresented Indian soldier is a party and for the deduction from periods of limitation in suits, appeals or applications by Indian soldiers of the

periods during which they have been serving under war conditions. The Act applies to service under war conditions during the war and for six months thereafter, and to other service which is declared by the Governor-General in Council to be service under war conditions.

It was suggested that the protection required in these matters by Indian soldiers serving under war conditions was also required by Indian soldiers serving on garrison duty overseas and in certain areas in India. Local Governments and Administrations were accordingly consulted in regard to the working of the existing Act. They unanimously accept the suggestion to extend its operation and are of opinion that it has been found to be of real benefit to the absent Indian soldier, and that the hardship caused to the general public has been negligible. Certain of the authorities consulted were, however, of opinion that the Act should not apply to suits, appeals or applications to enforce a right of pre-emption, nor to cases in which the interests of the soldier in the proceeding are either identical with or are adequately represented by another party to the proceeding. The former restriction on the application of the Act may be compared with the exception in section 8 of the Indian Limitation Act, 1908, and the restriction was proposed because of the insecurity of tenure which is involved by the present law in such cases. The Bill has been prepared to give effect to these suggestions, and it has been considered expedient to provide for them by consolidating and amending the law on the subject.

[24th February, 1925]

An Act to consolidate and amend the law to provide for the special protection in respect of civil and revenue litigation of Indian soldiers serving under special conditions.

Whereas it is expedient to consolidate and amend the law to provide for the special protection in respect of civil and revenue litigation of Indian soldiers serving under special conditions; It is hereby enacted as follows: -

This Act has been extended to the new Provinces and the merged States by the Merged States (Laws) Act, 1949, S.3 (w.e.f. 1.1.1950) and to the States of Manipur, Tripura and Vindhya Pradesh by the Union Territories (Laws) Act, 1950 (30 of 1950

), S.3 (w.e.f. 16.4.1950). Manipur and Tripura are full-filled States, now, see Act 81 of 1971 but Vindhya Pradesh is a part of Madhya Pradesh, see Act

37 of 1956

, S.9.

It has been extended also to the States merged in the State of Madhya Pradesh by M.P. Act

12 of 1950

, S.3 (w.e.f. 3.4.1950).

It has been extended to the Union Territory of Pondicherry by a notification issued under S.8 of the Pondicherry (Administration) Act, 1962 (49 of 1962), see Gazette of India, 1963, Pt. II, S.3(ii), p.3(S.O.4).

It has been extended to the Union territory of - (a) Dadra and Nagar Haveli by Regn. 6 of 1963 (w.e.f. 1.7.1965); and (b) Laccadive, Minicoy and Amindivi Islands by Regn. 8 of 1965 (1.10.1967). These Islands are now known as Lakshadweep, see Act 34 of 1973, S.3 (w.e.f. 1.11.1973). (c) Goa, Daman and Diu, see Gazette of India, 22.8.1984, Pt. II, S.3(i), Ext.p.2 No. 333-G.S.R. 621(E) of 1984.

1.

Short title, extent and commencement

-(1) This Act may be called The Indian Soldiers(Litigation) Act, 1925.

(2)

[It extends to the whole of India [* * *]

[Substituted by A.L.O. 1950, for sub-S.(2) (w.e.f. 26.1.1950).]

.]

(3)

It shall come into force on the first day of April, 1925.

2.

Definitions

.-In this Act, unless there is anything repugnant in the subject or context, -

(a)

["Court "means a Court other than a Criminal Court and includes any such tribunal or other authority as may be specified by the Central Government by notification in the Official Gazette being a tribunal or authority which is empowered by law

to receive evidence on any matter pending before it and on the basis of such evidence to determine, after hearing the parties before it, their rights and obligations of the parties in relation to such matter]

[Substituted by Act 23 of 1970, S.2, for Cl. (a) (w.e.f. 29.5.1970).]

;

(b)

"Indian soldier "means any person subject to [the Army Act, 1950, or the Air Force Act, 1950]

[Substituted by Act 3 of 1951, S.3 and Sch., for " the Indian Army Act, 1911, or the Indian Air Force Act, 1932" (w.e.f. 1.4.1951).]

, or the Navy Act, 1957;

(c)

"prescribed "means prescribed by rules made under this Act; and

(d)

"proceeding "includes any suit, appeal or application.

(e)

[any reference to a decree or order of a Court shall be deemed to include a reference to a judgment, determination or award of a Court.]

[Inserted by Act 23 of 1970, S.2 (w.e.f. 29.5.1970).]

3.

Circumstances in which an Indian soldier shall be deemed to be serving under special conditions

.-For the purposes of this Act, an Indian soldier shall be deemed to be or, as the case may be, to have been serving -

(a)

under special conditions (when he is or has been serving under war conditions), or overseas, or at any place [beyond India]

[Substituted by A.L.O. 1950, for beginning with " in Persia" and ending with " nearest railway Station" (w.e.f. 26.1.1950).]

, [or any such place within India as may be specified by the Central Government by notification in the Official Gazette]

[Inserted by Act 23 of 1970, S.3, (w.e.f. 29.5.1970).]

;

(b)

under war conditions-when he is or has been, at any time during the continuance of any hostilities declared by the [Central Government]

[Substituted by A.O. 1937, for " Governor General in Council" (w.e.f. 1.4.1937).]

by notification in the [Official Gazette]

[Substituted by A.O. 1937, for " Gazette of India" (w.e.f. 1.4.1937).]

to constitute a state of war for the purpose of this Act or at any time during a period of six months thereafter, - (i) serving out of India,

(ii)

under orders to proceed on field service,

(iii)

serving with any unit which is for the time being mobilised, or

(iv)

serving under conditions which, in the opinion of the prescribed authority, preclude him from obtaining leave of absence to enable him to attend a Court as a party to any proceeding or when he is or has been at any other time serving under conditions service under which has been declared by the [Central Government] [[Substituted by A.O. 1937, for " Governor General in Council" (w.e.f.

1.4.1937

)] by notification in the [Official Gazette]

[Substituted by A.O. 1937, for " Gazette of India" (w.e.f. 1.4.1937).]

to be service under war conditions; and

(c)

[overseas-when he is or has been serving in any place outside India (other than Ceylon) the journey between which and

[India][is ordinarilyundertaken wholly or in part by sea.]

[Substituted by A.O. 1937, for Cl. (c) (w.e.f. 1.4.1937).]

[Explanation.-For the purposes of this section and with effect from the 3rd day of September, 1939, asoldier who is or has been a prisoner of war shall be deemed to be or to havebeen serving under war conditions.]

4. Particulars to be furnished in plaints, applications or appeals to Court

.- If any personpresenting any plaint, application or appeal to any Court has reason to believethat any adverse party is an Indian soldier who is serving under specialconditions, he shall state the fact in his plaint, application or appeal.

5.

Powerof Collector to intervene in case of unrepresented Indian soldier

.-If any Collector hasreason to believe that any Indian soldier, who ordinarily resides or hasproperty in his district and who is a party to any proceeding pending beforeany Court, is unable to appear therein, the Collector may certify the facts in the prescribed manner to the Court.

6.

Noticeto be given in case of unrepresented Indian soldier

.- [(1)]

[Renumbered as sub-S. (1) thereof by Ord. 64 of 1942, S.3 (w.e.f. 12.12.1942).]

If a Collector hascertified under section 5, or if the Court has reason to believe, that an Indian soldier, who is a party to any proceeding pending before it, is unableto appear therein, and if the soldier is not represented by any person dulyauthorised to appear, plead or act on his behalf, the Court shall suspend theproceeding and shall give notice thereof in the prescribed manner to theprescribed authority:

Provided that the Court may refrain from suspending the proceeding and issuingnotice if -

(a)

the proceeding is a suit, appeal or application instituted or made by thesoldier, alone or conjointly with others with the object of enforcing a rightof pre-emption, or

(b)

the interests of thesoldier in the proceeding are, in the opinion of the Court, either identicalwith those of any other party to the proceeding and adequately represented bysuch other party or merely of a formal nature.

(2)

[If it appear to the Court before which any proceeding is pending that an Indian soldier though not a party to the proceeding is materially concerned in the outcome of the proceeding and that his interests are likely to beprejudiced by his inability to attend, the Court may suspend the proceeding andshall give notice thereof in the prescribed manner to the prescribed authority.]

[Inserted by Ord. 64 of 1942, S.3 (w.e.f. 12.12.1942).]

7.

Postponement of proceedings

.-If, on receipt of a notice under section 6, theprescribed authority certifies in the prescribed manner to the Court in which the proceeding is pending that the soldier in respect of whom the notice wasgiven is serving under special conditions, and that a postponement of theproceeding in respect of the soldier is necessary, in the interests of justice,the Court shall thereupon postpone the proceeding in respect of the soldier for the prescribed period, or, if no period has been prescribed, for such period asit thinks fit.

8.

Courtmay proceed when no certificate received

.-If, after issue of notice under section6, the prescribed authority either certifies that the soldier is not servingunder special conditions or that such postponement is not necessary, or failsto certify, in the case of a soldier resident in the district in which the Court is situate within two months or, in any other case, within three months,from the date of the issue of the notice that such postponement is necessary,the Court may, if it thinks fit, continue the proceeding.

9.

Postponement of proceedings against Indian soldier on leave

.-When any documentpurporting to be signed by the Commanding Officer of an Indian soldier who is aparty to any proceeding is produced by or on behalf of the soldier before the Court in which the proceeding is pending and is to the effect that the soldier-

(a)

is on leave of absence for a period not exceeding two months, and is on the expiration of his leave to rejoin his unit with a view to proceeding on service under special conditions, or

(b)

is on sick leave for a period not exceeding three months, and is on the expiration of his leave to rejoin his unit with a view to proceeding on service under special conditions, the proceeding in respect of such soldier may, in any case such as if referred to in the proviso to [sub-section (1) of section 6]

[Substituted by Ord. 64 of 1942, S.4, for " section 6" (w.e.f. 12.12.1942).]

and shall, in any other case, be postponed in the manner provided in section 7.

10.

Power to set aside decrees and orders, passed against an Indian soldier serving under war or special conditions

-(1) In any proceeding before a Court in which a decree or order has been passed against any Indian soldier [* * *]

[The words " whilst he was serving under war conditions or at any time after the 1st day of April, 1925" omitted by Ord. 64 of 1942, S.5 (w.e.f. 12.12.1942).]

whilst he was serving under any special conditions, the soldier [or, if he is dead, his legal representative]

[Inserted by Ord. 64 of 1942, S.5 (w.e.f. 12.12.1942).]

may apply to the Court which passed the decree or order for an order to set aside the same, and, if the Court after giving an opportunity to the opposite party of being heard, is satisfied that the interests of justice require that the decree or order should be set aside as against the soldier, the Court shall, subject to such conditions, if any, as it thinks fit to impose, make an order accordingly.

(2)

[The period of limitation for an application under sub-section (1) shall be ninety days from the date of the decree or order, or where the summons or notice was duly served on the soldier in the proceeding in which the decree or order was passed, from the date on which the applicant had knowledge of the decree or order; and the provisions of section 5 of the Indian Limitation Act, 1908 shall apply to such applications.]

[Substituted by Ord. 64 of 1942, S.5, for sub-S.(2) (w.e.f. 12.12.1942).]

(3)

When the decree or order in respect of which an application under sub-section (1) is made is of such a nature that it cannot be set aside as against the soldier only, it may be set aside as against all or any of the parties against whom it has been made.

(4)

Where a Court sets aside a decree or order under this section, it shall appoint a day for proceeding with the suit, appeal or application, as the case may be.

11.

[Modification of law of limitation where Indian soldier or his legal representative is a party

[Substituted by Ord. 64 of 1942, S.6, for S.11 (w.e.f. 12.12.1942).]

.-In computing the period of limitation prescribed by sub-section (2) of section 10 of this Act, the Indian Limitation Act, 1908, or any other law for the time being in force, for any suit, appeal or application to a Court, any party to which is or has been an Indian soldier, or is the legal representative of an Indian soldier, the period during which the soldier has been serving under any special conditions, and, if the soldier has died while so serving, the period from the date of his death to the date on which official intimation thereof was sent to his next-of-kin by the authorities in India, shall be excluded:

Provided that this section shall not apply in the case of any suit, appeal or application instituted or made with the object of enforcing a right of pre-emption [[except where the said right accrues in such circumstances, and is in respect of agricultural land and village immovable property situated in any such area][as the Central Government may, by notification in the Official Gazette, specify in this behalf]

[Substituted by Act 18 of 1946, S.2, for " except in such areas, and subject to such modifications, if any" (w.e.f. 18.4.1946).]

.]

12.

[Power of Court to refer questions to prescribed authorities

[Substituted by Ord. 64 of 1942, S.7, for the original (w.e.f. 12.12.1942).]

.If any Court is in doubt whether, for the purposes of section 10 or section 11, an Indian soldier is or was at any particular time serving under special conditions, or has died while so serving, or as to the date of such death or as to the date on which official intimation of such death was sent to his next-of-kin by the authorities in India, the Court may refer the point for the decision of the prescribed authority, and the certificate of that authority shall be conclusive evidence on the point.]

13. Rule-making power

-(1)

[Section 13 renumbered as sub-S. (1) thereof by Act 4 of 1986, S.2 and Sch. (w.e.f.15.5.1986).]

The [Central Government]

[Substituted by A.O. 1937, for "Local Government" and "Local Official Gazette", respectively.]

[* * *]

[The words "after consulting the High Court concerned" omitted by Act 23 of 1970, S.4 (w.e.f. 29.5.1970).]

may, by notification in the [Official Gazette]

[Substituted by A.O. 1937, for "Local Government" and "Local Official Gazette", respectively.]

make rules to provide for all or any of the following matters, namely: -

(a)

the manner and form in which any notice or certificate under this Act shall be given;

(b)

the period for which proceedings or any class of proceedings shall be postponed under section 7;

(c)

the persons who shall be the prescribed authorities for the purpose of this Act; (d) any other matter which is to be or may be prescribed; and

(e)

generally, any matters incidental to the purposes of this Act.

(2)

[Every rule made under this section shall be laid, as soon as may be after it is made, before each House of Parliament, while it is in session, for a total period of thirty days which may be comprised in one session or in two or more successive sessions, and if, before the expiry of the session immediately following the session or the successive sessions aforesaid, both Houses agree in making any modification in the rule or both Houses agree that the rule should not be made, the rule shall thereafter have effect only in such modified form or be of no effect, as the case may be; so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule.]

[Inserted by Act 4 of 1986, S.2, Sch. (a) (w.e.f. 15.5.1986).]

14.

Power to apply the provisions of the Act to other person in the service of the Government

-(1) [As respects the State Public Services, the [State Government]

[Section 14 renumbered as sub-S. (1) thereof by Ord. 54 of 1942, S.8 (w.e.f.12.12.1942).]

[, and in other cases, the Central Government]

[Substituted by A.O. 1937, for "The Governor-General in Council" (w.e.f. 1.4.1937).]

[may, by notification in the]

[Substituted by A.O. 1937, for "The Governor-General in Council" (w.e.f. 1.4.1937).]

[Official Gazette]

[Substituted by A.O. 1937, for "Gazette of India".]

[direct that all or any of the provisions of this Act shall apply to any other class of persons in the service of Government specified in such notification in the same manner as they apply to Indian soldiers.]

[Substituted by A.O. 1937, for "The Governor-General in Council" (w.e.f. 1.4.1937).]

(2)

[Where, under this section, the [State Government]

[Inserted by Ord. 64 of 1942, S.8.]

[has directed that all or any of the provisions of this Act shall apply to any class of persons in the service of Government, the powers vested in the Central Government by section 3 and section 13 shall be exercised in respect of that class of persons by the [State Government]

[Inserted by Ord. 64 of 1942, S.8.]

.]

14.

-A. Power to apply the provisions of the Act to members of the forces maintained by any Part B State

.[Repealed by the Adaptation of Laws (No. 3) Order, 1956 (w.r.e.f.1-11-1956).]

15.

Repeal of Acts 9 of 1918 and 12 of 1924.

-[Repealed by the Repealing Act,(1927 (12 of 1927), section 2 and Schedule.]

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